



Bill Number: H.B. 2404

Payne Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Adds a delayed effective date of January 1, 2030.
2. Removes the requirement for the prohibition against peace officers transporting patients for mental health services to begin on July 1, 2027.

PAYNE FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2404
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 5, article 1, Arizona Revised
3 Statutes, is amended by adding section 36-503.05, to read:

4 36-503.05. Mental health patients; proposed patients;
5 transportation; use of peace officers
6 prohibited; exceptions

7 A. [~~BEGINNING JULY 1, 2027,~~] NOTWITHSTANDING ANY OTHER LAW TO THE
8 CONTRARY, A PEACE OFFICER MAY NOT CONDUCT THE TRANSPORT OF A PERSON FROM A
9 HOSPITAL EMERGENCY DEPARTMENT OR A LOCKED UNIT OF A BEHAVIORAL HEALTH
10 FACILITY TO ANOTHER HEALTH CARE INSTITUTION, AN EVALUATION AGENCY OR A
11 MENTAL HEALTH TREATMENT AGENCY, UNLESS ONE OF THE FOLLOWING APPLIES:

12 1. THE PERSON IS INCARCERATED.

13 2. A COURT, A PERSON, AN EVALUATION AGENCY OR A MENTAL HEALTH
14 TREATMENT AGENCY HAS REASONABLE GROUNDS TO BELIEVE THAT THE PATIENT OR
15 PROPOSED PATIENT CANNOT BE SAFELY APPREHENDED WITHOUT THE ASSISTANCE OF A
16 PEACE OFFICER.

17 3. ANY PERSON REQUESTS A PEACE OFFICER BY DIALING 911 OR A SIMILAR
18 DESIGNATED TELEPHONE NUMBER FOR EMERGENCY CALLS AND NEEDS EMERGENCY
19 ASSISTANCE.

1 B. EXCEPT AS PROVIDED IN SUBSECTION A OF THIS SECTION, AN
2 AUTHORIZED TRANSPORTER SHALL CONDUCT ANY APPREHENSION AND TRANSPORT OF A
3 PATIENT OR PROPOSED PATIENT.

4 <<Sec. 2. Effective date
5 [Section 36-503.05, Arizona Revised Statutes, as added by this act,
6 is effective from and after December 31, 2029.]>>

7 Enroll and engross to conform

8 Amend title to conform

KEVIN PAYNE

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04/28/2026

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C: MH

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